

TRAINED SERVICE ANIMALS

Loudoun County Public Schools ("LCPS") does not discriminate on the basis of disability, and individuals with disabilities have the same right to access School Board property or school sponsored events as individuals without disabilities. The Virginians with Disabilities Act, Virginia Code § [51.5-44](#), as amended, and the Americans with Disability Act ("ADA"), as amended, permit an individual with a disability to be accompanied by their trained service animal on school property when required by law.

A. Service Animal

A "service animal" means a dog or miniature horse that is individually trained to do work or perform tasks for the benefit of an individual with a disability, including a physical, sensory, psychiatric, intellectual, or other mental disability. Other species of animals, whether wild or domestic, trained or untrained, are not service animals for the purposes of this definition. The work or tasks performed by a service animal must be directly related to the individual's disability.

School officials can ask the owner or handler of an animal whether the animal is required because of a disability and what work or task the animal has been trained to do unless the answers to these inquiries are readily apparent. School officials may not ask about the nature or extent of an individual's disability and may not require documentary proof of certification or licensing as a service animal.

B. Requirements of a Service Animal on School Property

1. The service animal must be vaccinated as required by law.
2. The service animal must be in good health.
3. The service animal must be under the control of its handler at all times.

C. Extra Charges. The owner or handler of a service animal is not required to pay an admission fee or a charge for the animal to attend events for which a fee is charged.

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D. Supervision and Care of a Service Animal. The owner or handler of a service animal is responsible for the supervision and care of the animal, including any feeding, exercising, and clean up.

E. Damages to School Property and Injuries. The owner or handler of a service animal is solely responsible for any damage to school property or injury to personnel, students, or others caused by the animal.

F. Removal of a Service Animal from School Property. A school administrator can require an individual with a disability to remove a service animal from school property under the following circumstances:

1. The animal is out of control and the animal's handler does not take effective action to control it;
2. The animal is not housebroken;
3. The presence of the animal poses a direct threat to the health or safety of others; or
4. The presence of an animal would require a fundamental alteration to the service, program, or activity of the school division.

If the service animal is removed, the individual with a disability shall be provided with the opportunity to participate in the service, program, or activity without the service animal.

G. Denial of Access and Grievance. If a school official denies a request for access of a service animal or a dog in training, the individual with a disability or parent or guardian can file a written grievance as outlined in Regulation 3050.

H. Regulation. The Division Superintendent will develop implementing regulations for students, employees and visitors.

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Legal Refs.: Code of Virginia, 1950, as amended, §§ [3.2-6521](#), [51.5-44](#); The Virginians with Disabilities Act; The Americans with Disabilities Act of 1990, as amended; The Americans with Disabilities Act Amendments Act of 2008, as amended; 28 C.F.R. §35.104, §35.136, §36.014; Individuals with Disabilities Education Act and implementing regulations at 34 CFR Part 300.

Cross Refs.: [Policy 1040](#), Equal Opportunity for Equitable, Safe and Inclusive Environment; and [Policy 8030](#), Student Discrimination and Harassment